

|                                                                                                                                                                                                                     |  |                                                                    |  |                                                                             |  |                                                              |  |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--|--------------------------------------------------------------------|--|-----------------------------------------------------------------------------|--|--------------------------------------------------------------|--|
| <b>AMENDMENT OF SOLICITATION/MODIFICATION OF CONTRACT</b>                                                                                                                                                           |  |                                                                    |  | 1. CONTRACT ID CODE<br><b>J</b>                                             |  | PAGE 1 OF 2 PAGES                                            |  |
| 2. AMENDMENT/MODIFICATION NUMBER<br><b>0001</b>                                                                                                                                                                     |  | 3. EFFECTIVE DATE<br><b>10 Mar 2026</b>                            |  | 4. REQUISITION/PURCHASE REQUISITION NUMBER<br><b>See Continuation Sheet</b> |  | 5. PROJECT NUMBER (If applicable)                            |  |
| 6. ISSUED BY CODE<br><b>NAVFACSYS COM PACIFIC<br/>258 MAKALAPA DR STE 100, JBPHH<br/>JBPHH, HI 96860-3134<br/>UNITED STATES<br/>Adele Murakami, Email: adele.m.murakami.civ@us.navy.mil Telephone: 808-603-0917</b> |  | 7. ADMINISTERED BY (If other than Item 6) CODE<br><b>SCD: PAS:</b> |  | 7. ADMINISTERED BY (If other than Item 6) CODE                              |  |                                                              |  |
| 8. NAME AND ADDRESS OF CONTRACTOR (Number, street, county, State and ZIP Code)                                                                                                                                      |  |                                                                    |  | (X)                                                                         |  | 9A. AMENDMENT OF SOLICITATION NUMBER<br><b>N6274226R1300</b> |  |
|                                                                                                                                                                                                                     |  |                                                                    |  | (X)                                                                         |  | 9B. DATED (SEE ITEM 11)<br><b>11 Feb 2026</b>                |  |
|                                                                                                                                                                                                                     |  |                                                                    |  | ( )                                                                         |  | 10A. MODIFICATION OF CONTRACT/ORDER NUMBER                   |  |
|                                                                                                                                                                                                                     |  |                                                                    |  | ( )                                                                         |  | 10B. DATED (SEE ITEM 13)                                     |  |
| CODE                                                                                                                                                                                                                |  | FACILITY CODE                                                      |  |                                                                             |  |                                                              |  |

**11. THIS ITEM ONLY APPLIES TO AMENDMENTS OF SOLICITATIONS**

☒ The above numbered solicitation is amended as set forth in Item 14. The hour and date specified for receipt of Offers ☐ is extended. ☒ is not extended.

Offers must acknowledge receipt of this amendment prior to the hour and date specified in the solicitation or as amended, by one of the following methods:  
 (a) By completing items 8 and 15, and returning 1 copies of the amendment; (b) By acknowledging receipt of this amendment on each copy of the offer submitted;  
 or (c) By separate letter or electronic communication which includes a reference to the solicitation and amendment numbers. FAILURE OF YOUR ACKNOWLEDGMENT TO BE RECEIVED AT THE PLACE DESIGNATED FOR THE RECEIPT OF OFFERS PRIOR TO THE HOUR AND DATE SPECIFIED MAY RESULT IN REJECTION OF YOUR OFFER. If by virtue of this amendment you desire to change an offer already submitted, such change may be made by letter or electronic communication, provided each letter or electronic communication makes reference to the solicitation and this amendment, and is received prior to the opening hour and date specified.

**12. ACCOUNTING AND APPROPRIATION DATA (If required)**  
 See Section 00 70 00 - Conditions of the Contract

**13. THIS ITEM APPLIES ONLY TO MODIFICATIONS OF CONTRACTS/ORDERS.  
IT MODIFIES THE CONTRACT/ORDER NUMBER AS DESCRIBED IN ITEM 14.**

|                          |                                                                                                                                                                                                                       |
|--------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| CHECK ONE                | A. THIS CHANGE ORDER IS ISSUED PURSUANT TO: (Specify authority) THE CHANGES SET FORTH IN ITEM 14 ARE MADE IN THE CONTRACT ORDER NUMBER IN ITEM 10A.                                                                   |
| <input type="checkbox"/> |                                                                                                                                                                                                                       |
| <input type="checkbox"/> | B. THE ABOVE NUMBERED CONTRACT/ORDER IS MODIFIED TO REFLECT THE ADMINISTRATIVE CHANGES (such as changes in paying office, appropriation data, etc.) SET FORTH IN ITEM 14, PURSUANT TO THE AUTHORITY OF FAR 43.103(b). |
| <input type="checkbox"/> | C. THIS SUPPLEMENTAL AGREEMENT IS ENTERED INTO PURSUANT TO AUTHORITY OF:                                                                                                                                              |
| <input type="checkbox"/> | D. OTHER (Specify type of modification and authority)                                                                                                                                                                 |

**E. IMPORTANT:** Contractor ☐ is not ☐ is required to sign this document and return \_\_\_\_\_ copies to the issuing office.

**14. DESCRIPTION OF AMENDMENT/MODIFICATION (Organized by UCF section headings, including solicitation/contract subject matter where feasible.)**  
 See Schedule

Except as provided herein, all terms and conditions of the document referenced in Item 9A or 10A, as heretofore changed, remains unchanged and in full force and effect.

|                                               |  |                                                            |  |
|-----------------------------------------------|--|------------------------------------------------------------|--|
| 15A. NAME AND TITLE OF SIGNER (Type or print) |  | 16A. NAME AND TITLE OF CONTRACTING OFFICER (Type or print) |  |
| 15B. CONTRACTOR/OFFEROR                       |  | 16B. UNITED STATES OF AMERICA                              |  |
| 15C. DATE SIGNED                              |  | 16C. DATE SIGNED                                           |  |
| (Signature of person authorized to sign)      |  | (Signature of Contracting Officer)                         |  |

SECTION SF 30 BLOCK 14 CONTINUATION PAGE

## SUMMARY OF CHANGES

**Block 14 (Description of Amendment/Modification):** RFP NO. N62742-26-R-1300, WON 1665555, FY24 AJJY183012 (P-012), PDI: NORTH AIRCRAFT PARKING RAMP, ANDERSEN AIR FORCE BASE, GUAM

The following items are applicable to this modification:

SOLICITATION, OFFER, AND AWARD (SF1442), PRICE PROPOSAL SCHEDULE

Delete the Solicitation, Offer and Award (Construction, Alteration, or Repair), Standard Form (SF) 1442, Price Proposal Schedule, Page 3 of 6 through Page 6 of 6 and replace with the attached revised Solicitation, Offer, and Award (Construction, Alteration, or Repair), SF1442, Price Proposal Schedule, Page 3 of 6 through Page 6 of 6 (Amendment No. 0001).

DOCUMENT 00 21 16, INSTRUCTIONS TO PROPOSERS

Delete Document 00 21 16 in its entirety and replace it with the attached revised Document 00 21 16 (Amendment No. 00001).

**SOLICITATION, OFFER AND AWARD (SF 1442), CONTINUED**  
**PRICE PROPOSAL SCHEDULE**  
**FOR**  
**RFP NO. N62742-26-R-1300**  
**WON 1665555, FY24 AJJY183012 (P-012), PDI: NORTH AIRCRAFT PARKING RAMP,**  
**ANDERSEN AIR FORCE BASE, GUAM**

| ITEM NO.      | SUPPLIES/SERVICES                                                                                                                                                                                                                                                                                                                    | QUANTITY                  | UNIT    | UNIT PRICE | AMOUNT   |
|---------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------|---------|------------|----------|
| <b>0001AA</b> | <b>BASE ITEM</b><br><br>The basis for SLIN 0001AA is the entire work for Project P-012 (WON 1665555) complete in accordance with the drawings and specifications, <b>except the work identified in any other CLIN/SLIN.</b>                                                                                                          | 1                         | Project |            | \$ _____ |
|               |                                                                                                                                                                                                                                                                                                                                      | <b>ESTIMATED QUANTITY</b> |         |            |          |
| <b>0001AB</b> | <b>Permeable Infill Karst Feature Mitigation</b><br><br>The basis for SLIN 0001AB is for mitigation of Karst Features using permeable infill ( <u>Zone 2</u> ) complete in accordance with drawings and specifications, but <b>not</b> including work specified in any other CLIN/SLINs.                                             | 9,000                     | CY      | \$ ____/CY | \$ _____ |
| <b>0001AC</b> | <b>Impermeable Infill Karst Feature Mitigation</b><br><br>The basis for SLIN 0001AC is for mitigation of Karst Features using impermeable infill ( <u>Zone 1</u> ) complete in accordance with drawings and specifications, but <b>not</b> including work specified in any other CLIN/SLINs.                                         | 9,000                     | CY      | \$ ____/CY | \$ _____ |
| <b>0001AD</b> | <b>One-Day Cultural Resources Feature Investigations</b><br><br>The basis for SLIN 0001AD is for One-Day Cultural Resources Feature Investigations for project P-012 in accordance with drawings and specifications, but <b>not</b> including work specified in any other SLINs/CLINs.                                               | 10                        | EA      | \$ ____/EA | \$ _____ |
| <b>0001AE</b> | <b>Cultural Resources Post Review Discovery (Small Sites)</b><br><br>The basis for SLIN 0001AE are Cultural Resources Post Review Discovery for small sites (equal to or less than 0.5 hectares) for project P-012 in accordance with drawings and specifications, but <b>not</b> including work specified in any other SLINs/CLINs. | 3                         | EA      | \$ ____/EA | \$ _____ |

**SOLICITATION, OFFER AND AWARD (SF 1442), CONTINUED  
PRICE PROPOSAL SCHEDULE  
FOR  
RFP NO. N62742-26-R-1300  
WON 1665555, FY24 AJJY183012 (P-012), PDI: NORTH AIRCRAFT PARKING RAMP,  
ANDERSEN AIR FORCE BASE, GUAM**

| ITEM NO. | SUPPLIES/SERVICES                                                                                                                                                                                                                                                                                                                                                                         | ESTIMATED QUANTITY | UNIT | UNIT PRICE  | AMOUNT   |
|----------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------|------|-------------|----------|
| 0001AF   | <b>Cultural Resources Post Review Discovery (Large Sites)</b><br><br>The basis for SLIN 0001AF is a Cultural Resources Post Review Discovery for a large site (greater than 0.5 hectares) for project P-012 in accordance with drawings and specifications, but <u>not</u> including work specified in any other SLINs/CLINs                                                              | 1                  | EA   | \$ ____/EA  | \$ _____ |
| 0001AG   | <b>Cultural Resources Post Review Discovery of Human Skeletal Remains</b><br><br>The basis for SLIN 0001AG are Cultural Resources Post Review Discovery of Human Skeletal Remains for project P-012 in accordance with drawings and specifications, but <u>not</u> including work specified in any other SLINs/CLINs.                                                                     | 5                  | EA   | \$ ____/EA  | \$ _____ |
| 0001AH   | <b>Electrical Resistivity Tomography (Ert) Testing</b><br><br>The basis for SLIN 0001AH is to conduct ERT testing in areas approved by the contracting officer, in accordance with drawings and specifications, but <u>not</u> including work specified in any other SLINs/CLINs.                                                                                                         | 37,000             | LF   | \$ ____/LF  | \$ _____ |
| 0001AI   | <b>Abandoned Concrete Debris/Stockpile</b><br><br>The basis of SLIN 0001AI is the price for all labor, temporary stockpiling, material, testing, and equipment for disposal of abandoned waste debris/ stockpiles in accordance with the drawings and specifications, but <u>not</u> including work specified in any other SLINs/CLINs.                                                   | 2,000              | Ton  | \$ ____/Ton | \$ _____ |
| 0001AJ   | <b>Abandoned Waste Debris Stockpile Excluding Concrete Debris</b><br><br>The basis of SLIN 0001AJ is the price for all labor, temporary stockpiling, material, testing, and equipment for disposal of abandoned waste debris stockpiles, excluding concrete debris, in accordance with the drawings and specifications, but <u>not</u> including work specified in any other SLINs/CLINs. | 500                | Ton  | \$ ____/Ton | \$ _____ |

**SOLICITATION, OFFER AND AWARD (SF 1442), CONTINUED**  
**PRICE PROPOSAL SCHEDULE**  
**FOR**  
**RFP NO. N62742-26-R-1300**  
**WON 1665555, FY24 AJJY183012 (P-012), PDI: NORTH AIRCRAFT PARKING RAMP,**  
**ANDERSEN AIR FORCE BASE, GUAM**

| ITEM NO.                                                                | SUPPLIES/SERVICES                                                                                                                                                                                                                                                                                                                               | ESTIMATED QUANTITY | UNIT        | UNIT PRICE   | AMOUNT   |
|-------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------|-------------|--------------|----------|
| <b>0001AK</b>                                                           | <b>Abandoned Hazardous Waste</b><br><br>The basis of SLIN 0001AK the price for all labor, temporary stockpiling, material, testing, and equipment for disposal of abandoned hazardous waste in accordance with the drawings and specifications, but <b>not</b> including work specified in any other SLINs/CLINs.                               | 100                | Ton         | \$ ____/Ton  | \$ _____ |
| <b>0001AL</b>                                                           | <b>Abandoned Hazardous Liquid Waste</b><br><br>The basis of SLIN 0001AL is the price for all labor, temporary storage, material, testing, and equipment for disposal of abandoned hazardous liquid waste in accordance with the drawings and specifications, but <b>not</b> including work specified in any other SLINs/CLINs.                  | 10                 | 55-gal drum | \$ ____/drum | \$ _____ |
| <b>0001AM</b>                                                           | <b>Abandoned Asbestos Containing Waste Not Listed In Section 02 82 00</b><br><br>The basis of SLIN 0001AM is the price for all labor, temporary stockpiling, material, testing, and equipment for disposal of abandoned asbestos containing waste that are not listed in Section 02 82 00 ASBESTOS REMEDIATION, Part 1.3.1 Description of Work. | 100                | Ton         | \$ ____/Ton  | \$ _____ |
| <b>TOTAL CLIN 0001</b><br><b>(includes SLINs 0001AA through 0001AM)</b> |                                                                                                                                                                                                                                                                                                                                                 |                    |             |              | \$ _____ |

Notes:

- See Document 00 22 00 for the Price Evaluation.
- A firm-fixed-price is required for all line items. The following applies:  
  
ALL OR NONE OFFERS - Offers are solicited on an “all or none” basis and FAR 52.215-1, INSTRUCTIONS TO OFFERORS-COMPETITIVE ACQUISITION in Document 00 21 16, is hereby modified. Failure to submit offers for all line items listed shall be cause for rejection of the offer.
- The Offeror SHALL include a price for ALL CLINs/SLINs.
- Multiple awards will not be made.
- In the event there is a difference between a unit price (s) and the extended total(s), the unit price(s) will be held to be the intended offer and the total(s) recomputed accordingly. If an offer provides a total but fails to enter a unit price, the total divided by the specified quantity will be held to be the intended unit price.

**SOLICITATION, OFFER AND AWARD (SF 1442), CONTINUED**  
**PRICE PROPOSAL SCHEDULE**  
**FOR**  
**RFP NO. N62742-26-R-1300**  
**WON 1665555, FY24 AJJY183012 (P-012), PDI: NORTH AIRCRAFT PARKING RAMP,**  
**ANDERSEN AIR FORCE BASE, GUAM**

6. Payment for SLINs 0001AB through 0001AM shall be for actual quantities only. The unit prices will be used to adjust the contract price for any increase or decrease in the estimated quantities subject to the following clause:

FAR 52.211-18, VARIATION IN ESTIMATED QUANTITY (APR 1984)

If the quantity of a unit-priced item in this contract is an estimated quantity and the actual quantity of the unit-priced item varies more than 15 percent above or below the estimated quantity, an equitable adjustment in the contract price shall be made upon demand of either party. The equitable adjustment shall be based upon any increase or decrease in costs due solely to the variation above 115 percent or below 85 percent of the estimated quantity. If the quantity variation is such as to cause an increase in the time necessary for completion, the Contractor may request, in writing, an extension of time, to be received by the Contracting Officer within 10 days from the beginning of the delay, or within such further period as may be granted by the Contracting Officer before the date of final settlement of the contract. Upon the receipt of a written request for an extension, the Contracting Officer shall ascertain the facts and make an adjustment for extending the completion date as, in the judgement of the Contracting Officer, is justified.

(End of clause)

0001AI. Abandoned Concrete Debris/Stockpile – The basis for SLIN 0001AI is the price to recycle or dispose of abandoned Concrete debris/stockpile. The cost must include waste characterization, sampling and analysis, excavation, segregation if required, stockpile management, packaging for shipping and hauling, and transportation. Assume disposal at a permitted recycling or disposal facility in Guam. It is acceptable to reuse onsite after processing concrete debris if the material meets the project requirements.

0001AJ. Abandoned Waste Debris Stockpiles excluding Concrete Debris – The basis for SLIN 0001AJ is the price to dispose of abandoned waste debris stockpiles excluding concrete debris. The cost must include waste characterization, sampling and analysis, excavation, segregation if required, stockpile management, packaging for shipping and hauling, and transportation. Assume disposal at a permitted disposal facility in Guam. The abandoned waste debris may include, but is not limited to, scrap metal, plastics, and rubber.

0001AK. Abandoned Hazardous Waste – The basis for SLIN 0001AK is the price to dispose of abandoned hazardous waste. The cost must include waste characterization, sampling and analysis, excavation, segregation if required, stockpile management, packaging for shipping and hauling, and transportation. Assume disposal at a permitted hazardous waste disposal facility in the mainland, U.S.

0001AL. Abandoned Hazardous Liquid Waste – The basis for SLIN 0001AL is the price to dispose of abandoned hazardous liquid waste. The cost must include waste characterization, sampling and analysis, excavation, segregation if required, storage, packaging for shipping and hauling, and transportation. Assume disposal at a permitted hazardous waste disposal facility in the mainland, U.S.

0001AM. Abandoned Asbestos Containing Waste Not Listed in Section 02 82 00 – The basis for SLIN 0001AM is the price to dispose of abandoned asbestos containing waste that are not listed in Section 02 82 00 ASBESTOS REMEDIATION, Part 1.3.1 Description of Work. The cost must include worker protection, asbestos removal work, waste characterization, sampling and analysis, excavation, segregation if required, stockpile management, package for shipping and hauling, and transportation. Assume disposal of asbestos-containing waste in a permitted disposal facility in Guam.

7. **DFARS 252.247-7023, TRANSPORTATION OF SUPPLIES BY SEA.** Within 30 days of each shipment, the Contractor is required to provide an electronic copy of the carrier's bill of lading to the Contracting Officer and to MARAD via e-mail, Attention: Military Team. MARAD email: [Cargo.Marad@dot.gov](mailto:Cargo.Marad@dot.gov). In addition, the Contractor shall notify the Contracting Officer when oceanic shipments have been initiated within 3 working days of shipment.

DOCUMENT 00 21 16  
INSTRUCTIONS TO PROPOSERS  
10/25

1.1 NUMBER OF COPIES/TIME OF RECEIPT

a. PRICE PROPOSAL (PAPER): An original paper and one (1) paper copy of the price proposal shall be submitted on **29 April 2026, 2:00 p.m., H.S.T.** in a sealed envelope and marked in the bottom right corner "PRICE PROPOSAL SUBMITTED UNDER RFP N62742-26-R-1300 - DO NOT OPEN IN MAILROOM." The PRICE PROPOSAL shall include the following:

- (1) Pursuant to FAR 52.236-28(a) manually (wet signature) signed and completed SF 1442 (Solicitation, Offer and Award) (NOTE: SF 1442 Block 14 shall include the offeror's name and physical address exactly as shown in the System for Award Management (SAM) registration. If mailing address is different from physical address, both addresses may be shown in Block 14; however, both addresses shall be EXACTLY as shown in SAM.)
- (2) Signed and completed Bid Guarantee
- (3) Representations and Certifications (See Document 00 45 00) (COMPLETE ALL PROVISIONS)
- (4) Information required by paragraph 1.5, Pre-Award Survey/Responsibility Determination
- (5) Information required by paragraph 1.6, Partnerships, Joint Ventures (JV), Limited Liability Companies (LLC), Limited Partnerships (LP), etc.
- (6) Information required by paragraph 1.8, Complementary Pricing Information
- (7) Information required by paragraph 1.23, DFARS 252.204-7025, NOTICE OF CYBERSECURITY MATURITY MODEL CERTIFICATION LEVEL REQUIREMENTS (NOV 2025), paragraph (d).

b. TECHNICAL PROPOSAL (FACTORS 1, 2 AND 3) (PAPER): An original paper and three (3) paper copies of the technical proposal shall be submitted on **29 April 2026, 2:00 p.m., H.S.T.** in a sealed envelope/package/box and marked in the bottom right corner "TECHNICAL PROPOSAL SUBMITTED UNDER RFP N62742-26-R-1300 - DO NOT OPEN IN MAILROOM." Identify the original proposal as "Original" on the cover of the proposal. The TECHNICAL PROPOSAL shall be submitted in a three-ring binder with table of contents and tabbed. The TECHNICAL PROPOSAL shall include the following:

- (1) All information required by Factor 1 – Experience
- (2) All information required by Factor 2 – Past Performance
- (3) All information required by Factor 3 – Safety

c. SUBCONTRACTING PLAN (PAPER): An original paper and one (1) paper copy of the subcontracting plan shall be submitted by **30 April 2026, 2:00 p.m., H.S.T.** in a sealed envelope/package/box and marked in the bottom right corner "SUBCONTRACTING PLAN SUBMITTED UNDER RFP N62742-26-R-1300 - DO NOT OPEN IN MAILROOM." Identify the original proposal as "Original" on the cover of the proposal.

- (1) All information required by 1.7, Subcontracting Plan

d. PRICE AND TECHNICAL PROPOSALS (ELECTRONIC): An electronic copy of the price and technical proposals shall be submitted in .pdf format on a CD-ROM with the paper copy of the subcontracting plan. The

offeror is responsible for ensuring that all original paper and electronic copies are identical. Should there be a discrepancy between the paper and electronic versions, the paper copy shall govern.

e. Proposals shall be submitted as follows:

(1) If sent via U. S. Postal Mail/Express Courier:

NAVAL FACILITIES ENGINEERING SYSTEMS COMMAND, PACIFIC  
Construction Contracts Branch (CON33)  
258 Makalapa Drive, Suite 100  
Pearl Harbor, HI 96860-3134

(2) If hand-carried (Delivery hours between 7:00 AM and 2:00 PM, Monday through Friday, except Federal Holidays)

NAVAL FACILITIES ENGINEERING SYSTEMS COMMAND, PACIFIC  
Construction Contracts Branch (CON33)  
**4256 Radford Drive, Building 62 (if facing the building, the office is on the right. DO NOT drop-off at the Navy Federal Credit Union)**  
Honolulu, HI 96818-3296

## 1.2 INSTRUCTIONS FOR OBTAINING THE REQUEST FOR PROPOSAL

The RFP can be accessed at <https://sam.gov>. Printed copies of the RFP will not be issued. Contractors must register at the System for Award Management (SAM) website <https://sam.gov> to obtain access to the RFP documents. Registration instructions can be found on the SAM website.

## 1.3 INSTRUCTIONS FOR SUBMITTING QUESTIONS REGARDING SOLICITATION

Questions regarding the solicitation shall be submitted in **writing** in WORD format via electronic mail to Adele Murakami, [adele.m.murakami.civ@us.navy.mil](mailto:adele.m.murakami.civ@us.navy.mil). Questions shall reference the drawing/detail and/or the specification section including paragraph number. Verbal queries will not be entertained. Responses to the questions will be provided in the form of a Notice and posted to the web site <https://sam.gov>. The Government may not respond to questions submitted less than 10 business days before the proposal receipt due date.

## 1.4 AMENDMENTS

Amendments will be posted to <https://sam.gov>. It is highly recommended that firms register on the SAM website as an interested vendor as this will be the only planholder's list available. It is the offeror's responsibility to check the website periodically for any amendments to the solicitation.

## 1.5 PREAWARD SURVEY/RESPONSIBILITY DETERMINATION

FAR §9.104 requires prospective contractors to demonstrate, among other things, that they have adequate financial resources to perform the contract or the ability to obtain them, capability to comply with the required performance schedule, a satisfactory performance record, and be otherwise eligible to receive an award under applicable laws and regulations. The pre-award survey is not a part of the technical proposal evaluation. The following information shall be submitted:

a. The offeror shall submit a document that appoints, in writing, one or more individuals, by name, each of whom will have full and independent authority to bind the offeror with respect to any act connected with this solicitation, including but not limited to: the submission and revisions of a proposal or proposals by the company, the conduct of discussion or negotiations, the submission of a Final Proposal Revision (FPR), and the execution of a contract and associated documents including bonds. Documents of appointment by a supporting resolution of the board of



directors in the case of a corporation and by an instrument of similarly binding character in the case of an unincorporated entity. If bonds are not signed manually (wet signature), documents of appointment must include specific authorization and corporate approval for the use of electronic and facsimile signatures by the appointed individual(s).

- b. Company financial statements (balance sheets and income statements) for past three years.
- c. Financial resources available to perform the contract. Submit evidence of availability of working/operating capital that will be used for the performance of the contract. If the offeror plans to rely on financial support from other sources, identify the maximum lines of credit that will be available to include documentation to support the amounts. The maximum lines of credit should be based upon the inclusion of this contract effort. For joint ventures discuss the financial responsibilities for each partner.
- d. Newly-formed entities (e.g. limited liability companies (“LLC’s”), limited partnerships (“LTD’s”) and newly-created corporate subsidiaries) that is the entity liable for the contract ordinarily have no financial capability to support a responsibility determination. In such cases, the offeror may rely on the resources of the LLC member, parent, limited partner, or other entities related to the offeror for responsibility purposes where the offer submits a guaranty from the entity providing the resources. The offeror shall provide a guaranty agreement (See Form DCMA Form 1620 attached) for the contract price.
- e. A list of existing commercial and government business commitments to include contract numbers, names of Contracting Officers, telephone numbers, value of contract, completion date and percent complete. If the list of existing commitments is extensive, provide the required information on at least five projects of similar dollar value and a summary of the existing commitments to include number of contracts, total dollar value of all contracts, and total dollar value of work remaining.
- f. Copy of the email confirmation of receipt notification of successful submission of the VETS-4212.
- g. As a part of the pre-award survey, the contracting officer will verify that summary level scores of a current NIST SP 800-171 DoD Assessment (i.e., not more than 3 years old unless a lesser time is specified in the solicitation) are posted in the Supplier Performance Risk Assessment (SPRS) (<https://www.sprs.csd.disa.mil/>) (see Document 00 45 00, DFARS 252.204-7019, Notice of NIST SP 800-171 DoD Assessment Requirements) prior to award. At minimum, a current Basic NIST SP 800-171 DoD Assessment is required prior to award.

The information submitted for the pre-award survey will not be considered in the technical proposal evaluation unless separately submitted pursuant to the technical proposal evaluation factor submission requirements.

#### 1.6 PARTNERSHIPS, JOINT VENTURES (JV), LIMITED LIABILITY COMPANIES (LLC), LIMITED PARTNERSHIPS (LP), ETC.

Partnerships, Joint Ventures, Limited Liability Companies, Limited Partnerships and Mentor-Protégé arrangements shall submit the following documentation regarding their business entities:

- a. A copy of the Partnership Agreement, JV Agreement(s), LLC Operating Agreement(s), LP Agreement(s), and/or Mentor-Protégé Agreement(s). Contractor shall provide an updated copy whenever any change is made to the agreement.
- b. The proposal and each bond or other document submitted by or on behalf of the joint venture shall be executed by each joint venture partner and shall be accompanied by evidence of the authority of the signer. That authority shall be evidenced by a document satisfactory to the Contracting Officer, which would ordinarily be, in the case of a corporate joint venture partner, a certified copy of a resolution of the board of directors, and in the case of an unincorporated joint venture partner, an instrument of similarly binding character duly executed by that entity. If one individual signs for more than one partner, the individual must sign separately for each partner which he or she represents, and must state under each signature the capacity in which he or she is signing (See FAR 4.102).

c. Identify (by name and title) the personnel having the authority to legally bind the Offeror (including authority to execute the contract documents and bonds).

d. Procedures in the event the entity is dissolved.

e. A detailed statement outlining the following in terms of percentages where appropriate:

(1) The relationship of the partners/parties in terms of business ownership, capital contribution, profit distribution or loss sharing.

(2) The management approach in terms of who will conduct, direct, supervise, control, and the controlling partner's authority to obligate the entity.

(3) The structure and decision-making responsibilities of the partners/parties in terms of who will control the manner and method of performance of work.

f. Joint Ventures shall submit the following additional documentation regarding their business entities:

(1) Together with its proposal, each corporate joint venture partner shall submit evidence satisfactory to the Contracting Officer that its board of directors has approved its participation in the joint venture. Such evidence shall be in the form of a copy of a resolution of the board of directors, certified by the Secretary of the Corporation.

(2) Together with its proposal, each joint venture partner which is an unincorporated entity shall submit evidence satisfactory to the Contracting Officer that all persons or entities which must approve decisions affecting the joint venture partner have approved the participation of the joint venture partner in the joint venture.

#### 1.7 SUBCONTRACTING PLAN

a. As stated in Document 00 22 00, paragraph 2.1, EVALUATION CRITERIA AND BASIS OF AWARD, this is a lowest priced technically acceptable source selection. Accordingly, small business subcontracting is not included as a technical evaluation factor. However, large business concerns must submit a Small Business Subcontracting Plan that addresses the following:

1. Identify in terms of dollar value and percentage of the total acquisition, the extent of work you will perform as the prime contractor. If submitting an offer as a Joint-Venture, identify the percentage of work each member will be responsible for and indicate the size status of each member, e.g., LB, SB, SDB, WOSB, HUBZone SB, etc.

2. In accordance with FAR 52.219-9, submit a Small Business Subcontracting Plan utilizing the template at the end of this section for this project. To demonstrate commitment in using small business concerns, the Small Business Subcontracting Plan may list all subcontractors by name. **If the proposed Small Business Subcontracting goals do not meet the minimum NAVFAC Small Business Subcontracting Targets, include a detailed explanation describing the actions taken to arrive at that determination, along with an explanation for the goals that actually were proposed. In accordance with FAR 52.219-9, Alternate II, "failure to submit and negotiate a subcontracting plan shall make the offeror ineligible for award of a contract."**

b. NAVFAC's command-wide small business subcontracting targets are shown below. These may be higher or lower than percentages that would represent realistic, challenging small business subcontracting goals for this acquisition. Offerors shall document in their subcontracting plans the basis for all proposed goals. Plans shall be submitted with initial offers.

|            |     |
|------------|-----|
| SB         | 40% |
| SDB        | 5%  |
| HUBZone SB | 3%  |

|        |    |
|--------|----|
| WOSB   | 9% |
| SDVOSB | 3% |

- c. See the Small Business Subcontracting Plan (Template) at the end of Document 00 21 16 for format.

## 1.8 COMPLEMENTARY PRICING INFORMATION

Offeror's are requested to submit the attached Complementary Pricing Information (Template) at the end of Document 00 21 16 with its price proposal. The Complementary Pricing Information is for Government information only and will not be used for the Price Evaluation specified in Document 00 22 00.

## 1.9 FAR 52.204-7, SYSTEM FOR AWARD MANAGEMENT (NOV 2024)

- (a) Definitions. As used in this provision—

“Electronic Funds Transfer (EFT) indicator” means a four-character suffix to the unique entity identifier. The suffix is assigned at the discretion of the commercial, nonprofit, or Government entity to establish additional System for Award Management records for identifying alternative EFT accounts (see [subpart 32.11](#)) for the same entity.

*Registered in the System for Award Management (SAM)* means that—

(1) The Offeror has entered all mandatory information, including the unique entity identifier and the EFT indicator, if applicable, the Commercial and Government Entity (CAGE) code, as well as data required by the Federal Funding Accountability and Transparency Act of 2006 (see [subpart 4.14](#)) into the SAM;

(2) The offeror has completed the Core, Assertions, and Representations and Certifications, and Points of Contact sections of the registration in the SAM;

(3) The Government has validated all mandatory data fields, to include validation of the Taxpayer Identification Number (TIN) with the Internal Revenue Service (IRS). The offeror will be required to provide consent for TIN validation to the Government as a part of the SAM registration process; and

(4) The Government has marked the record “Active”.

*Unique entity identifier* means a number or other identifier used to identify a specific commercial, nonprofit, or Government entity. See [www.sam.gov](http://www.sam.gov) for the designated entity for establishing unique entity identifiers.

(b) (1) An Offeror is required to be registered in SAM when submitting an offer or quotation and at time of award (see FAR clause 52.204-13, System for Award Management Maintenance, for the requirement to maintain SAM registration during performance and through final payment).

(2) The Offeror shall enter, in the block with its name and address on the cover page of its offer, the annotation “Unique Entity Identifier” followed by the unique entity identifier that identifies the Offeror's name and address exactly as stated in the offer. The Offeror also shall enter its EFT indicator, if applicable. The unique entity identifier will be used by the Contracting Officer to verify that the Offeror is registered in the SAM.

(c) If the Offeror does not have a unique entity identifier, it should contact the entity designated at [www.sam.gov](http://www.sam.gov) for establishment of the unique entity identifier directly to obtain one. The Offeror should be prepared to provide the following information:

- (1) Company legal business name.
- (2) Tradestyle, doing business, or other name by which your entity is commonly recognized.
- (3) Company physical street address, city, state, and Zip Code.
- (4) Company mailing address, city, state and Zip Code (if separate from physical).

- (5) Company telephone number.
- (6) Date the company was started.
- (7) Number of employees at your location.
- (8) Chief executive officer/key manager.
- (9) Line of business (industry).
- (10) Company headquarters name and address (reporting relationship within your entity).

(d) Processing time should be taken into consideration when registering. Offerors who are not registered in SAM should consider applying for registration immediately upon receipt of this solicitation. See <https://www.sam.gov> for information on registration.

#### 1.10 FAR 52.204-16, COMMERCIAL AND GOVERNMENT ENTITY CODE REPORTING (AUG 2020)

(a) *Definition.* As used in this provision –

*Commercial and Government Entity (CAGE) code means–*

(1) An identifier assigned to entities located in the United States or its outlying areas by the Defense Logistics Agency (DLA) Commercial and Government Entity (CAGE) Branch to identify a commercial or government entity by unique location; or

(2) An identifier assigned by a member of the North Atlantic Treaty Organization (NATO) or by the NATO Support and Procurement Agency (NSPA) to entities located outside the United States and its outlying areas that the DLA Commercial and Government Entity (CAGE) Branch records and maintains in the CAGE master file. This type of code is known as a NATO CAGE (NCAGE) code.

(b) The Offeror shall provide its CAGE code with its offer with its name and location address or otherwise include it prominently in its proposal. The CAGE code must be for that name and location address. Insert the word “CAGE” before the number. The CAGE code is required prior to award.

(c) CAGE codes may be obtained via–

(1) Registration in the System for Award Management (SAM) at [www.sam.gov](http://www.sam.gov). If the Offeror is located in the United States or its outlying areas and does not already have a CAGE code assigned, the DLA Commercial and Government Entity (CAGE) Branch will assign a CAGE code as a part of the SAM registration process. SAM registrants located outside the United States and its outlying areas shall obtain a NCAGE code prior to registration in SAM (see paragraph (c)(3) of this provision).

(2) *The DLA Contractor and Government Entity (CAGE) Branch.* If registration in SAM is not required for the subject procurement, and the Offeror does not otherwise register in SAM, an Offeror located in the United States or its outlying areas may request that a CAGE code be assigned by submitting a request at <https://cage.dla.mil>.

(3) The appropriate country codification bureau. Entities located outside the United States and its outlying areas may obtain an NCAGE code by contacting the Codification Bureau in the foreign entity's country if that country is a member of NATO or a sponsored nation. NCAGE codes may be obtained from the NSPA at <https://eportal.nspa.nato.int/AC135Public/scage/CageList.aspx> if the foreign entity's country is not a member of NATO or a sponsored nation. Points of contact for codification bureaus, as well as additional information on obtaining NCAGE codes, are available at <http://www.nato.int/structur/AC/135/main/links/contacts.htm>.

(d) Additional guidance for establishing and maintaining CAGE codes is available at <https://cage.dla.mil>.

(e) When a CAGE code is required for the immediate owner and/or the highest-level owner by Federal Acquisition Regulation (FAR) [52.204-17](#) or [52.212-3\(p\)](#), the Offeror shall obtain the respective CAGE code from that entity to supply the CAGE code to the Government.

(f) Do not delay submission of the offer pending receipt of a CAGE code.

(g) If the solicitation includes FAR clause [52.204-2](#), Security Requirements, a subcontractor requiring access to classified information under a contract shall be identified with a CAGE code on the DD Form 254. The Contractor shall require a subcontractor requiring access to classified information to provide its CAGE code with its name and location address or otherwise include it prominently in the proposal. Each location of subcontractor performance listed on the DD Form 254 is required to reflect a corresponding unique CAGE code for each listed location unless the work is being performed at a Government facility, in which case the agency location code shall be used. The CAGE code must be for that name and location address. Insert the word "CAGE" before the number. The CAGE code is required prior to award.

**1.11 FAR 52.211-14, NOTICE OF PRIORITY RATING FOR NATIONAL DEFENSE, EMERGENCY PREPAREDNESS, AND ENERGY PROGRAM USE (APR 2008)**

Any contract awarded as a result of this solicitation will be \_ DX rated order; X DO-C2 rated order certified for national defense, emergency preparedness, and energy program use under the Defense Priorities and Allocations System (DPAS) (15 CFR 700), and the Contractor will be required to follow all of the requirements of this regulation.

**1.12 FAR 52.214-34, SUBMISSION OF OFFERS IN THE ENGLISH LANGUAGE (APR 1991)**

Offers submitted in response to this solicitation shall be in the English language. Offers received in other than English shall be rejected.

**1.13 FAR 52.214-35, SUBMISSION OF OFFERS IN U.S. CURRENCY (APR 1991)**

Offers submitted in response to this solicitation shall be in terms of U.S. dollars. Offers received in other than U.S. dollars shall be rejected.

**1.14 FAR 52.215-1, INSTRUCTIONS TO OFFERORS--COMPETITIVE ACQUISITION (NOV 2021)**

(a) *Definitions.* As used in this provision-

*Discussions* are negotiations that occur after establishment of the competitive range that may, at the Contracting Officer's discretion, result in the offeror being allowed to revise its proposal.

*In writing*, "writing," or "written" means any worded or numbered expression that can be read, reproduced, and later communicated, and includes electronically transmitted and stored information.

*Proposal modification* is a change made to a proposal before the solicitation's closing date and time, or made in response to an amendment, or made to correct a mistake at any time before award.

*Proposal revision* is a change to a proposal made after the solicitation closing date, at the request of or as allowed by a Contracting Officer as the result of negotiations.

*Time*, if stated as a number of days, is calculated using calendar days, unless otherwise specified, and will include Saturdays, Sundays, and legal holidays. However, if the last day falls on a Saturday, Sunday, or legal holiday, then the period shall include the next working day.

(b) *Amendments to solicitations.* If this solicitation is amended, all terms and conditions that are not amended remain unchanged. Offerors shall acknowledge receipt of any amendment to this solicitation by the date and time specified in the amendment(s).

(c) Submission, modification, revision, and withdrawal of proposals. (1) Unless other methods (*e.g.*, electronic commerce or facsimile) are permitted in the solicitation, proposals and modifications to proposals shall be submitted in paper media in sealed envelopes or packages (i) addressed to the office specified in the solicitation, and (ii) showing the time and date specified for receipt, the solicitation number, and the name and address of the offeror. Offerors using commercial carriers should ensure that the proposal is marked on the outermost wrapper with the information in paragraphs (c)(1)(i) and (c)(1)(ii) of this provision.

(2) The first page of the proposal must show—

- (i) The solicitation number;
- (ii) The name, address, and telephone and facsimile numbers of the offeror (and electronic address if available);
- (iii) A statement specifying the extent of agreement with all terms, conditions, and provisions included in the solicitation and agreement to furnish any or all items upon which prices are offered at the price set opposite each item;
- (iv) Names, titles, and telephone and facsimile numbers (and electronic addresses if available) of persons authorized to negotiate on the offeror's behalf with the Government in connection with this solicitation; and
- (v) Name, title, and signature of person authorized to sign the proposal. Proposals signed by an agent shall be accompanied by evidence of that agent's authority, unless that evidence has been previously furnished to the issuing office.

(3) Submission, modification, revision, and withdrawal of proposals. (i) Offerors are responsible for submitting proposals, and any modifications or revisions, so as to reach the Government office designated in the solicitation by the time specified in the solicitation. If no time is specified in the solicitation, the time for receipt is 4:30 p.m., local time, for the designated Government office on the date that proposal or revision is due.

(ii) (A) Any proposal, modification, or revision received at the Government office designated in the solicitation after the exact time specified for receipt of offers is "late" and will not be considered unless it is received before award is made, the Contracting Officer determines that accepting the late offer would not unduly delay the acquisition; and-

(1) If it was transmitted through an electronic commerce method authorized by the solicitation, it was received at the initial point of entry to the Government infrastructure not later than 5:00 p.m. one working day prior to the date specified for receipt of proposals; or

(2) There is acceptable evidence to establish that it was received at the Government installation designated for receipt of offers and was under the Government's control prior to the time set for receipt of offers; or

(3) It is the only proposal received.

(B) However, a late modification of an otherwise successful proposal that makes its terms more favorable to the Government, will be considered at any time it is received and may be accepted.

(iii) Acceptable evidence to establish the time of receipt at the Government installation includes the time/date stamp of that installation on the proposal wrapper, other documentary evidence of receipt maintained by the installation, or oral testimony or statements of Government personnel.

(iv) If an emergency or unanticipated event interrupts normal Government processes so that proposals cannot be received at the office designated for receipt of proposals by the exact time specified in the solicitation, and urgent Government requirements preclude amendment of the solicitation, the time specified for receipt of proposals

will be deemed to be extended to the same time of day specified in the solicitation on the first work day on which normal Government processes resume.

(v) Proposals may be withdrawn by written notice received at any time before award. Oral proposals in response to oral solicitations may be withdrawn orally. If the solicitation authorizes facsimile proposals, proposals may be withdrawn via facsimile received at any time before award, subject to the conditions specified in the provision at [52.215-5](#), Facsimile Proposals. Proposals may be withdrawn in person by an offeror or an authorized representative, if the identity of the person requesting withdrawal is established and the person signs a receipt for the proposal before award.

(4) Unless otherwise specified in the solicitation, the offeror may propose to provide any item or combination of items.

(5) Offerors shall submit proposals in response to this solicitation in English, unless otherwise permitted by the solicitation, and in U.S. dollars, unless the provision at FAR [52.225-17](#), Evaluation of Foreign Currency Offers, is included in the solicitation.

(6) Offerors may submit modifications to their proposals at any time before the solicitation closing date and time, and may submit modifications in response to an amendment, or to correct a mistake at any time before award.

(7) Offerors may submit revised proposals only if requested or allowed by the Contracting Officer.

(8) Proposals may be withdrawn at any time before award. Withdrawals are effective upon receipt of notice by the Contracting Officer.

(d) *Offer expiration date.* Proposals in response to this solicitation will be valid for the number of days specified on the solicitation cover sheet (unless a different period is proposed by the offeror).

(e) *Restriction on disclosure and use of data.* Offerors that include in their proposals data that they do not want disclosed to the public for any purpose, or used by the Government except for evaluation purposes, shall-

(1) Mark the title page with the following legend:

This proposal includes data that shall not be disclosed outside the Government and shall not be duplicated, used, or disclosed-in whole or in part-for any purpose other than to evaluate this proposal. If, however, a contract is awarded to this offeror as a result of-or in connection with-the submission of this data, the Government shall have the right to duplicate, use, or disclose the data to the extent provided in the resulting contract. This restriction does not limit the Government's right to use information contained in this data if it is obtained from another source without restriction. The data subject to this restriction are contained in sheets [*insert numbers or other identification of sheets*]; and

(2) Mark each sheet of data it wishes to restrict with the following legend:

Use or disclosure of data contained on this sheet is subject to the restriction on the title page of this proposal.

(f) Contract award. (1) The Government intends to award a contract or contracts resulting from this solicitation to the responsible offeror(s) whose proposal(s) represents the best value after evaluation in accordance with the factors and subfactors in the solicitation.

(2) The Government may reject any or all proposals if such action is in the Government's interest.

(3) The Government may waive informalities and minor irregularities in proposals received.



(4) The Government intends to evaluate proposals and award a contract without discussions with offerors (except clarifications as described in FAR [15.306\(a\)](#)). Therefore, the offeror's initial proposal should contain the offeror's best terms from a cost or price and technical standpoint. The Government reserves the right to conduct discussions if the Contracting Officer later determines them to be necessary. If the Contracting Officer determines that the number of proposals that would otherwise be in the competitive range exceeds the number at which an efficient competition can be conducted, the Contracting Officer may limit the number of proposals in the competitive range to the greatest number that will permit an efficient competition among the most highly rated proposals.

(5) The Government reserves the right to make an award on any item for a quantity less than the quantity offered, at the unit cost or prices offered, unless the offeror specifies otherwise in the proposal.

(6) The Government reserves the right to make multiple awards if, after considering the additional administrative costs, it is in the Government's best interest to do so.

(7) Exchanges with offerors after receipt of a proposal do not constitute a rejection or counteroffer by the Government.

(8) The Government may determine that a proposal is unacceptable if the prices proposed are materially unbalanced between line items or subline items. Unbalanced pricing exists when, despite an acceptable total evaluated price, the price of one or more line items is significantly overstated or understated as indicated by the application of cost or price analysis techniques. A proposal may be rejected if the Contracting Officer determines that the lack of balance poses an unacceptable risk to the Government.

(9) If a cost realism analysis is performed, cost realism may be considered by the source selection authority in evaluating performance or schedule risk.

(10) A written award or acceptance of proposal mailed or otherwise furnished to the successful offeror within the time specified in the proposal shall result in a binding contract without further action by either party.

(11) If a post-award debriefing is given to requesting offerors, the Government shall disclose the following information, if applicable:

- (i) The agency's evaluation of the significant weak or deficient factors in the debriefed offeror's offer.
- (ii) The overall evaluated cost or price and technical rating of the successful and the debriefed offeror and past performance information on the debriefed offeror.
- (iii) The overall ranking of all offerors, when any ranking was developed by the agency during source selection.
- (iv) A summary of the rationale for award.
- (v) For acquisitions of commercial products, the make and model of the product to be delivered by the successful offeror.
- (vi) Reasonable responses to relevant questions posed by the debriefed offeror as to whether source selection procedures set forth in the solicitation, applicable regulations, and other applicable authorities were followed by the agency.

#### [1.15 FAR 52.216-1, TYPE OF CONTRACT \(APR 1984\)](#)

The Government contemplates award of a firm-fixed-price contract resulting from this solicitation.



**1.16 FAR 52.222-56, CERTIFICATION REGARDING TRAFFICKING IN PERSONS COMPLIANCE PLAN  
(OCT 2025)**

(a) The term "commercially available off-the-shelf (COTS) item," is defined in the clause of this solicitation entitled "Combating Trafficking in Persons" (FAR clause [52.222-50](#)).

(b) The apparent successful Offeror shall submit, prior to award, a certification, as specified in paragraph (c) of this provision, for the portion (if any) of the contract that-

(1) Is for supplies, other than commercially available off-the-shelf items, to be acquired outside the United States, or services to be performed outside the United States; and

(2) Has an estimated value that exceeds \$700,000.

(c) The certification shall state that-

(1) It has implemented a compliance plan to prevent any prohibited activities identified in paragraph (b) of the clause at [52.222-50](#), Combating Trafficking in Persons, and to monitor, detect, and terminate the contract with a subcontractor engaging in prohibited activities identified at paragraph (b) of the clause at [52.222-50](#), Combating Trafficking in Persons; and

(2) After having conducted due diligence, either-

(i) To the best of the Offeror's knowledge and belief, neither it nor any of its proposed agents, subcontractors, or their agents is engaged in any such activities; or

(ii) If abuses relating to any of the prohibited activities identified in [52.222-50](#)(b) have been found, the Offeror or proposed subcontractor has taken the appropriate remedial and referral actions.

**1.17 FAR 52.225-12, NOTICE OF BUY AMERICAN REQUIREMENT--CONSTRUCTION MATERIALS  
UNDER TRADE AGREEMENTS (MAY 2014) ALTERNATE I (MAY 2014)**

(a) *Definitions.* "Commercially available off-the-shelf (COTS) item," "construction material," "designated country construction material," "domestic construction material," and "foreign construction material," as used in this provision, are defined in the clause of this solicitation entitled "Buy American-Construction Materials Under Trade Agreements" (Federal Acquisition Regulation (FAR) clause [52.225-11](#)).

(b) *Requests for determination of inapplicability.* An offeror requesting a determination regarding the inapplicability of the Buy American statute shall submit the request with its offer, including the information and applicable supporting data required by paragraphs (c) and (d) of FAR clause [52.225-11](#).

(c) Evaluation of offers. (1) The Government will evaluate an offer requesting exception to the requirements of the Buy American statute, based on claimed unreasonable cost of domestic construction materials, by adding to the offered price the appropriate percentage of the cost of such foreign construction material, as specified in paragraph (b)(4)(i) of FAR clause [52.225-11](#).

(2) If evaluation results in a tie between an offeror that requested the substitution of foreign construction material based on unreasonable cost and an offeror that did not request an exception, the Contracting Officer will award to the offeror that did not request an exception based on unreasonable cost.

(d) Alternate offers. (1) When an offer includes foreign construction material, other than designated country construction material, that is not listed by the Government in this solicitation in paragraph (b)(3) of FAR clause 52.225-11, the offeror also may submit an alternate offer based on use of equivalent domestic or designated country construction material.

(2) If an alternate offer is submitted, the offeror shall submit a separate Standard Form 1442 for the alternate offer, and a separate price comparison table prepared in accordance with paragraphs (c) and (d) of FAR clause 52.225-11 for the offer that is based on the use of any foreign construction material for which the Government has not yet determined an exception applies.

(3) If the Government determines that a particular exception requested in accordance with paragraph (c) of FAR clause 52.225-11 does not apply, the Government will evaluate only those offers based on use of the equivalent domestic or designated country construction material, and the offeror shall be required to furnish such domestic or designated country construction material. An offer based on use of the foreign construction material for which an exception was requested-

(i) Will be rejected as nonresponsive if this acquisition is conducted by sealed bidding; or

(ii) May be accepted if revised during negotiations.

#### 1.18 FAR 52.228-17, INDIVIDUAL SURETY—PLEDGE OF ASSETS (FEB 2021)

(a) Offerors shall obtain from each person acting as an individual surety on a bid guarantee—

(1) A pledge of assets that meets the eligibility, valuation, and security requirements described in the Federal Acquisition Regulation (FAR) [28.203-1](#); and

(2) Standard Form 28, Affidavit of Individual Surety.

(b) The Offeror shall include with its offer the information required at paragraph (a) of this provision within the timeframe specified in the provision at FAR [52.228-1](#), Bid Guarantee, or as otherwise established by the Contracting Officer.

(c) The Contracting Officer may release the security interest on the individual surety's assets in support of a bid guarantee based upon evidence that the offer supported by the individual surety will not result in contract award.

#### 1.19 FAR 52.233-2, SERVICE OF PROTEST (SEP 2006)

(a) Protests, as defined in section 33.101 of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the General Accountability Office (GAO), shall be served on the Contracting Officer (addressed as follows) by obtaining written and dated acknowledgment of receipt from NAVFACENCOM, Pacific (CON33), Construction Contracts Branch, 258 Makalapa Drive, Suite 100, Joint Base Pearl Harbor-Hickam, HI 96860-3134.

(b) The copy of any protest shall be received in the office designated above within one day of filing a protest with the GAO.

#### 1.20 FAR 52.236-27, SITE VISIT (CONSTRUCTION) (FEB 1995) ALTERNATE I (FEB 1995)

(a) The clauses at 52.236-2, Differing Site Conditions, and 52.236-3, Site Investigation and Conditions Affecting the Work, will be included in any contract awarded as a result of this solicitation. Accordingly, offerors or quoters are urged and expected to inspect the site where the work will be performed.

(b) A **one-time** pre-proposal site visit has been scheduled **25 March 2026, 9:00 a.m. ChST**. This site visit is to provide Offerors with an opportunity to familiarize themselves with the jobsite and conditions to be encountered and **is not** for the purpose of answering questions. Photos may be taken as directed by the Government.

Except as directed in the subsequent paragraph, Offerors interested in attending this pre-proposal site visit shall submit the following forms (located at the end of this Document) and documents:

- (1) Base Access Request (BAR) – Contractor Memo (Fill-in information indicated with red.)
- (2) III Log (Complete in accordance with the attached “How to Fill Out the III Log” instructions located at the end of this Document.)
- (3) Base Access Affidavit 2024 (completed for each visitor that does NOT have a DBIDS pass)
- (4) Foreign National Access Request Form (This form only required for foreigners and as applicable should include required supporting documentation.)
- (5) Either a U.S. Passport or REAL ID Act Driver’s License/ID
- ~~(6) Information for Approval of Camera Pass: Company Name and Address, Attendees Name(s), and Position Title(s). Individuals must be approved to take photos for this Site Visit. Therefore, the failure to submit this information for approval will prohibit the taking of photos.~~

All completed forms and documents and requested information shall be emailed to Adele Murakami at [adele.m.murakami.civ@us.navy.mil](mailto:adele.m.murakami.civ@us.navy.mil) on or before **25 February 2026, 2:00 p.m. H.S.T.** Contractor’s representative(s) who have access to the project site (i.e., current DBIDS, CAC, Visitor Pass, etc.) may attend the Site Visit and are not required to submit any forms or documents.

Approved BAR forms will be returned to Contractors and should be taken (at least 7-10 business days prior to the date of the Site Visit) to the Andersen Air Force Base Pass and ID office (map located after this Document), which is located outside the Main Gate. A tracking number will be assigned for use in following up on the processing and approval of Base Passes.

On the day of the Site Visit, Contractors who DO NOT have DBIDS shall bring their U.S. Passport or REAL ID compliant ID, a copy of their “Base Access Affidavit” and “III Log” and assigned Tracking Number to the North Gate Visitor Control Center (VCC), Andersen Air Force Base, to use for picking up their approved Base Pass. Please schedule ample time, as long lines may cause delays.

(c) **PLEASE BE INFORMED:** Sufficient processing time is required for each Visitor’s forms. Consequently, a Visitor may not be able to attend the Site Visit if incomplete forms and packages cause a delay in the processing of their Base Pass or all required documents are submitted after the specified due date.

(d) The furnishing of the above information, including your Social Security Number, is voluntary. However, your failure to furnish all or part of the information request may result in the Government's denial of access to the jobsite. Any of the above information furnished by you and protected under the Privacy Act shall not be released unless permitted by law and/or you have consented to such release.

(e) Attendees shall meet at the North Gate VCC.

#### **1.21 FAR 52.236-28, PREPARATION OF PROPOSALS-CONSTRUCTION (OCT 1997)**

(a) Proposals must be (1) submitted on the forms furnished by the Government or on copies of those forms, and (2) manually signed. The person signing a proposal must initial each erasure or change appearing on any proposal form.

(b) The proposal form may require offerors to submit proposed prices for one or more items on various bases, including—

- (1) Lump sum price;
- (2) Alternate prices;
- (3) Units of construction; or

(4) Any combination of subparagraphs (b)(1) through (b)(3) of this provision.

(c) If the solicitation requires submission of a proposal on all items, failure to do so may result in the proposal being rejected without further consideration. If a proposal on all items is not required, offerors should insert the words "no proposal" in the space provided for any item on which no price is submitted.

(d) Alternate proposals will not be considered unless this solicitation authorizes their submission.

#### 1.22 DFARS 252.204-7008, COMPLIANCE WITH SAFEGUARDING COVERED DEFENSE INFORMATION CONTROLS (OCT 2016)

(a) *Definitions.* As used in this provision—

“Controlled technical information,” “covered contractor information system,” “covered defense information,” “cyber incident,” “information system,” and “technical information” are defined in clause [252.204-7012](#), Safeguarding Covered Defense Information and Cyber Incident Reporting.

(b) The security requirements required by contract clause [252.204-7012](#), shall be implemented for all covered defense information on all covered contractor information systems that support the performance of this contract.

(c) For covered contractor information systems that are not part of an information technology service or system operated on behalf of the Government (see [252.204-7012\(b\)\(2\)](#)—

(1) By submission of this offer, the Offeror represents that it will implement the security requirements specified by National Institute of Standards and Technology (NIST) Special Publication (SP) 800-171 “Protecting Controlled Unclassified Information in Nonfederal Information Systems and Organizations” (see <http://dx.doi.org/10.6028/NIST.SP.800-171>) that are in effect at the time the solicitation is issued or as authorized by the contracting officer not later than December 31, 2017.

(2) (i) If the Offeror proposes to vary from any of the security requirements specified by NIST SP 800-171 that are in effect at the time the solicitation is issued or as authorized by the Contracting Officer, the Offeror shall submit to the Contracting Officer, for consideration by the DoD Chief Information Officer (CIO), a written explanation of—

(A) Why a particular security requirement is not applicable; or

(B) How an alternative but equally effective, security measure is used to compensate for the inability to satisfy a particular requirement and achieve equivalent protection.

(ii) An authorized representative of the DoD CIO will adjudicate offeror requests to vary from NIST SP 800-171 requirements in writing prior to contract award. Any accepted variance from NIST SP 800-171 shall be incorporated into the resulting contract.

#### 1.23 DFARS 252.204-7025, NOTICE OF CYBERSECURITY MATURITY MODEL CERTIFICATION LEVEL REQUIREMENTS (NOV 2025)

(a) *Definitions.* As used in this provision, “controlled unclassified information (CUI),” “current,” “Cybersecurity Maturity Model Certification (CMMC) status,” “Cybersecurity Maturity Model Certification unique identifier (CMMC UID),” “Federal contract information (FCI),” and “plan of action and milestones” have the meaning given in the Defense Federal Acquisition Regulation Supplement 252.204-7021, Contractor Compliance With the Cybersecurity Maturity Model Certification Level Requirements, clause of this solicitation.

(b) (1) Cybersecurity Maturity Model Certification (CMMC) level. The CMMC level required by this solicitation is: **CMMC Level 1 (Self)**. This CMMC level, or higher (see 32 CFR part 170), is required prior to award for each contractor information system that will process, store, or transmit Federal contract information (FCI) or controlled unclassified information (CUI) during performance of the contract.

(2) The Offeror will not be eligible for award of a contract, task order, or delivery order resulting from this solicitation if the Offeror does not have, for each of the contractor information systems that will process, store, or transmit FCI or CUI and that will be used in performance of a contract resulting from this solicitation—

(i) The current CMMC status entered in the Supplier Performance Risk System (SPRS) (<https://piee.eb.mil>) at the CMMC level required by paragraph (b)(1) of this provision; and

(ii) A current affirmation of continuous compliance with the security requirements identified at 32 CFR part 170 in SPRS.

(c) Plan of action and milestones. If the Offeror has a CMMC Status of Conditional, the Offeror shall successfully close out a valid plan of action and milestones (32 CFR 170.21) to achieve a CMMC Status of Final.

(d) CMMC unique identifiers. The Offeror shall provide, in the proposal, the CMMC unique identifier(s) (CMMC UIDs) issued by SPRS for each contractor information system that will process, store, or transmit FCI or CUI during performance of a contract, task order, or delivery order resulting from this solicitation. The Offeror also shall update the list when new CMMC UIDs are generated in SPRS. The CMMC UIDs are provided in SPRS after the Offeror enters the results of self-assessment(s) for each such information system.

#### 1.24 DFARS 252.215-7008, ONLY ONE OFFER (DEC 2022)

(a) *Cost or pricing data requirements.* After initial submission of offers, if the Contracting Officer notifies the Offeror that only one offer was received, the Offeror agrees to—

(1) Submit any additional cost or pricing data that is required in order to determine whether the price is fair and reasonable (10 U.S.C. 3705) or to comply with the statutory requirement for certified cost or pricing data (10 U.S.C. 3702 and FAR 15.403-3); and

(2) Except as provided in paragraph (b) of this provision, if the acquisition exceeds the certified cost or pricing data threshold and an exception to the requirement for certified cost or pricing data at FAR 15.403-1(b)(2) through (5) does not apply, certify all cost or pricing data in accordance with paragraph (c) of DFARS provision [252.215-7010](#), Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data, of this solicitation.

(b) *Canadian Commercial Corporation.* If the Offeror is the Canadian Commercial Corporation, certified cost or pricing data are not required. If the Contracting Officer notifies the Canadian Commercial Corporation that additional data other than certified cost or pricing data are required in accordance with DFARS [225.870-4](#) (c), the Canadian Commercial Corporation shall obtain and provide the following:

(1) Profit rate or fee (as applicable).

(2) Analysis provided by Public Works and Government Services Canada to the Canadian Commercial Corporation to determine a fair and reasonable price (comparable to the analysis required at FAR 15.404-1).

(3) Data other than certified cost or pricing data necessary to permit a determination by the U.S. Contracting Officer that the proposed price is fair and reasonable [*U.S. Contracting Officer to provide description of the data required in accordance with FAR 15.403-3(a)(1) with the notification*].

(4) As specified in FAR 15.403-3(a)(4), an offeror who does not comply with a requirement to submit data that the U.S. Contracting Officer has deemed necessary to determine price reasonableness or cost realism is ineligible for award unless the head of the contracting activity determines that it is in the best interest of the Government to make the award to that offeror.

(c) *Subcontracts*. Unless the Offeror is the Canadian Commercial Corporation, the Offeror shall insert the substance of this provision, including this paragraph (c), in all subcontracts exceeding the simplified acquisition threshold defined in FAR part 2.

## 1.25 DFARS 252.215-7010, REQUIREMENTS FOR CERTIFIED COST OR PRICING DATA AND DATA OTHER THAN CERTIFIED COST OR PRICING DATA – BASIC (MAY 2024)

(a) *Definitions*. As used in this provision—

“Market prices” means current prices that are established in the course of ordinary trade between buyers and sellers free to bargain and that can be substantiated through competition or from sources independent of the offerors.

“Non-Government sales” means sales of the supplies or services to non-Governmental entities for purposes other than governmental purposes.

“Relevant sales data” means information provided by an offeror on sales of the same or similar items that can be used to establish price reasonableness taking into consideration the age, volume, and nature of the transactions (including any related discounts, refunds, rebates, offsets, or other adjustments).

*Sufficient non-Government sales* means relevant sales data that reflects market pricing and contains enough information to make adjustments covered by Federal Acquisition Regulation (FAR) [15.404-1\(b\)\(2\)\(ii\)\(B\)](#).

“Uncertified cost data” means the subset of “data other than certified cost or pricing data” (see FAR [2.101](#)) that relates to cost.

(b) *Exceptions from certified cost or pricing data*.

(1) In lieu of submitting certified cost or pricing data, the Offeror may submit a written request for exception by submitting the information described in paragraphs (b)(1)(i) and (ii) of this provision. The Contracting Officer may require additional supporting information, but only to the extent necessary to determine whether an exception should be granted and whether the price is fair and reasonable.

(i) *Exception for prices set by law or regulation - Identification of the law or regulation establishing the prices offered*. If the prices are controlled under law by periodic rulings, reviews, or similar actions of a governmental body, attach a copy of the controlling document, unless it was previously submitted to the contracting office.

(ii) *Commercial product or commercial service exception*. For a commercial product or commercial service exception, the Offeror shall submit, at a minimum, information that is adequate for determining commerciality and evaluating the reasonableness of the price for this acquisition, including prices at which the same product or service or similar products or services have been sold in the commercial market. Such information shall include—

(A) For items previously determined to be commercial, the contract number and military department, defense agency, or other DoD component that rendered such determination, and if available, a Government point of contact;

(B) For subsystems of a major weapon system and components and spare parts of a major weapon system or subsystem of a major weapon system that have not previously been determined to be commercial—



(1) The comparable commercial product the Offeror sells to the general public or nongovernmental entities;

(2) A comparison between the physical characteristics and functionality of the comparable commercial product and the subsystem, component, or spare part, including—

(i) For products under paragraph (3)(i) of the “commercial product” definition at FAR [2.101](#), a description of the modification and documentation to support that the modification is customarily available in the marketplace; or

(ii) For products under paragraph (3)(ii) of the “commercial product” definition at FAR [2.101](#), a detailed description of the modification and detailed technical data to demonstrate that the modification is minor (e.g., information on production processes and material differences); and

(3) The national stock number (NSN) for the comparable commercial product, if one is assigned, and the NSN for the subsystem, component, or spare part, if one is assigned; or

(4) If the Offeror does not sell a comparable commercial product to the general public or nongovernmental entities for purposes other than government purposes, the Offeror shall—

(i) Notify the Contracting Officer in writing that it does not sell such a comparable product; and

(ii) Provide the Contracting Officer with a comparison of the physical characteristics and functionality of the most comparable commercial product in the commercial market.

(C) For items priced based on a catalog—

(1) A copy of or identification of the Offeror’s current catalog showing the price for that item; and

(2) If the catalog pricing provided with this proposal is not consistent with all relevant sales data, a detailed description of differences or inconsistencies between or among the relevant sales data, the proposed price, and the catalog price (including any related discounts, refunds, rebates, offsets, or other adjustments);

(D) For items priced based on market pricing, a description of the nature of the commercial market, the methodology used to establish a market price, and all relevant sales data. The description shall be adequate to permit DoD to verify the accuracy of the description;

(E) For items included on an active Federal Supply Service Multiple Award Schedule contract, proof that an exception has been granted for the schedule item; or

(F) For items provided by nontraditional defense contractors, a statement that the entity is not currently performing and has not performed, for at least the 1-year period preceding the solicitation of sources by DoD for the procurement or transaction, any contract or subcontract for DoD that is subject to full coverage under the cost accounting standards prescribed pursuant to 41 U.S.C. 1502 and the regulations implementing such section.

(2) The Offeror grants the Contracting Officer or an authorized representative the right to examine, at any time before award, books, records, documents, or other directly pertinent records to verify any request for an exception under this provision, and to determine the reasonableness of price.

(c) *Requirements for certified cost or pricing data.* If the Offeror is not granted an exception from the requirement to submit certified cost or pricing data, the following applies:

(1) The Offeror shall prepare and submit certified cost or pricing data and supporting attachments in accordance with the instructions contained in Table 15-2 of FAR [15.408](#), which is incorporated by reference with the same force and effect as though it were inserted here in full text. The instructions in Table 15-2 are incorporated as a mandatory format to be used in any resultant contract, unless the Contracting Officer and the Offeror agree to a different format and change this provision to use Alternate I.

(2) As soon as practicable after agreement on price, but before contract award (except for unpriced actions such as letter contracts), the Offeror shall submit a Certificate of Current Cost or Pricing Data, as prescribed by FAR [15.406-2](#).

(3) The Offeror is responsible for determining whether a subcontractor qualifies for an exception from the requirement for submission of certified cost or pricing data on the basis of adequate price competition, i.e., two or more responsible offerors, competing independently, submit priced offers that satisfy the Government's expressed requirement in accordance with FAR [15.403-1\(c\)\(1\)\(ii\)](#).

(d) *Requirements for data other than certified cost or pricing data.*

(1) Data other than certified cost or pricing data submitted in accordance with this provision shall include the minimum information necessary to permit a determination that the proposed price is fair and reasonable, to include the requirements in Defense Federal Acquisition Regulation Supplement ( DFARS) [215.402\(a\)\(i\)](#), [215.404-1\(b\)](#), and [234.7002\(e\)](#).

(2) In cases in which uncertified cost data is required, the information shall be provided in the form in which it is regularly maintained by the Offeror or prospective subcontractor in its business operations.

(3) If the Offeror redacts data that identifies the customer (see DFARS [234.7002\(e\)\(2\)](#)), then the Offeror shall include, for each sale, the following signed statement with the data submitted:

*“By submission of this data, the Offeror [Offeror insert company name] certifies that the customer was [Offeror insert one or more of the following as applicable: a government customer; a commercial customer purchasing the same or similar product for governmental purposes (e.g., Federal, state, local, or foreign government); or a commercial customer purchasing the same or similar product for a commercial, mixed, or unknown purpose ].”*

(4) Within 10 days of a written request from the Contracting Officer for additional information to permit an adequate evaluation of the proposed price in accordance with FAR [15.403-3](#) or DFARS 234.7002(e), the Offeror shall provide either the requested information, or a written explanation for the inability to fully comply.

(5) *Subcontract price evaluation.* (i) Offerors shall obtain from subcontractors the minimum information necessary to support a determination of price reasonableness, as described in FAR [part 15](#) and DFARS [part 215](#).

(ii) No cost data may be required from a prospective subcontractor in any case in which there are sufficient non-Government sales of the same item to establish reasonableness of price.

(iii) If the Offeror relies on relevant sales data for similar items to determine the price is reasonable, the Offeror shall obtain only that technical information necessary –

(A) To support the conclusion that items are technically similar; and

(B) To explain any technical differences that account for variances between the proposed prices and the sales data presented.

(e) *Subcontracts.* The Offeror shall insert the substance of this provision, including this paragraph (e), in subcontracts exceeding the simplified acquisition threshold defined in FAR [part 2](#). The Offeror shall require prospective subcontractors to adhere to the requirements of –



(1) Paragraphs (c) and (d) of this provision for subcontracts above the threshold for submission of certified cost or pricing data in FAR [15.403-4](#); and

(2) Paragraph (d) of this provision for subcontracts exceeding the simplified acquisition threshold defined in FAR part 2.

#### 1.26 [DFARS 252.225-7057, PREAWARD DISCLOSURE OF EMPLOYMENT OF INDIVIDUALS WHO WORK IN THE PEOPLE'S REPUBLIC OF CHINA \(AUG 2022\)](#)

(a) Definitions. As used in this provision—

“Covered contract” and “covered entity” have the meaning given in the clause 252.225-7058, Postaward Disclosure of Employment of Individuals Who Work in the People’s Republic of China.

(b) Prohibition on award. In accordance with section 855 of the National Defense Authorization Act for Fiscal Year 2022 (Pub. L. 117-81, 10 U.S.C. 4651 note prec.), DoD may not award a contract to the Offeror if it is a covered entity and proposes to employ one or more individuals who will perform work in the People’s Republic of China on a covered contract, unless the Offeror has disclosed its use of workforce and facilities in the People’s Republic of China.

(c) Preaward disclosure requirement. At the time of submission of an offer for a covered contract, an Offeror that is a covered entity shall provide disclosures to include—

(1) The proposed use of workforce on a covered contract or subcontract, if the Offeror employs one or more individuals who perform work in the People’s Republic of China;

(2) The total number of such individuals who will perform work in the People’s Republic of China; and

(3) A description of the physical presence, including street address or addresses, in the People’s Republic of China, where work on the covered contract will be performed.

#### 1.27 [DFARS 252.236-7008, CONTRACT PRICES--BIDDING SCHEDULES \(DEC 1991\)](#)

(a) The Government's payment for the items listed in the Bidding Schedule shall constitute full compensation to the Contractor for—

(1) Furnishing all plant, labor, equipment, appliances, and materials; and

(2) Performing all operations required to complete the work in conformity with the drawings and specifications.

(b) The Contractor shall include in the prices for the items listed in the Bidding Schedule all costs for work in the specifications, whether or not specifically listed in the Bidding Schedule.

#### 1.28 [TERRITORY OF GUAM NOTICE CONCERNING TAXES, LICENSES, WITHHOLDINGS](#)

(NOTE: The information in this Instructions to Proposers is provided by the Government of Guam, Department of Revenue and Taxation. Any questions concerning applicability or interpretation should be directed to that Agency at physical address: 1240 Army Drive, Barrigada, Guam, 96913; mailing address: Department of Revenue & Taxation, Taxpayer Services Division, PO Box 23607, Barrigada, Guam 96921; or by phone at (671) 635-1835. Business registration with the Government of Guam is not considered in determining contractor responsiveness or responsibility. Offerors attention is directed to the Clause in the solicitation entitled "PERMITS AND RESPONSIBILITIES.") (FAR 52.236-7).

1. All persons engaging in business in Guam must be licensed to do so by the Government of Guam prior to commencement of business in Guam. Engaging in business includes, but is not limited to, services provided by contractors. Applications for business licenses shall be made to the Department of Revenue and Taxation, License and Registration Branch.
2. All corporations, domestic (created under the laws of Guam) or foreign (not created under the laws of Guam) must register with the Department of Revenue and Taxation, License and Registration Branch.
3. Any person engaging in business on Guam must file monthly Business Privilege Tax returns with the Department of Revenue and Taxation.
4. All corporations with the Guam source of funds must file income tax returns to the Department of Revenue and Taxation on the prescribed forms.
5. All employers must deposit wage withholdings from their employees to the Treasurer of Guam. Guam Depository Receipts, as well as Quarterly Withholding Statements are required to be filed with the Department of Revenue and Taxation in the same manner as similar returns and statements required to be filed with the U.S. Internal Revenue Service.
6. Failure to comply with the above may result in criminal or civil penalties as provided by law.

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